

Court File Number

(Name of Court)

**Form 29D: Statutory
Declaration of Indexed
Support,**

at _____
Court office address

dated _____

Recipient(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Payor

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Garnishee

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

My name is (full legal name) _____

I live in (municipality & province) _____

and I declare that the following is true:

1. I am _____ a recipient under a support order or the support provisions of a domestic contract.
an assignee of a recipient under a support order or the support provisions of a domestic contract.
an agent of the Director of the Family Responsibility Office.
(Other; specify.) _____
2. On (date) _____, a notice of garnishment was issued to the garnishee to enforce a support order or the support provisions of a domestic contract that indexed the periodic payments for inflation.
3. On (date) _____, the amount of support was automatically adjusted for inflation as set out in the order, contract or agreement.
4. As a result of this adjustment, the garnishee should now be making the following deductions:
(State new level of deductions.) _____

Put a line through any blank space left on this page.

Sworn/Affirmed before me at
municipality
in
province, state, or country
on
date
Commissioner for taking affidavits
(Type or print name below if signature is illegible.)

Signature
(This form is to be signed in front of a
lawyer, justice of the peace, notary public
or commissioner for taking affidavits.)

NOTE: This declaration must be served on the garnishee and the payor together with blank forms of dispute and must then be filed with the clerk of the court. You can serve by any means allowed in rule 6 of the Family Law Rules, including mail, courier and fax. The filing with the clerk of the court must be accompanied by proof of service (Form 6B).

NOTICE TO GARNISHEE: From the moment that you are served with this declaration, you must treat the notice of garnishment as if it now required you to make the deductions set out in paragraph 4 of this declaration. Failure to do so is the same as disobeying the notice of garnishment.

NOTICE TO PAYOR AND GARNISHEE: You have the right to serve and file a dispute in Form 29E (dispute from payor) or Form 29F (dispute from garnishee) at the court office within 10 days after service of this declaration on you if you have legal reasons for objecting to the changes to the notice of garnishment. You may want to talk to a lawyer about this. A blank form of dispute should have accompanied this declaration when it was served on you. If it is missing, you should talk to your own lawyer or the court office immediately. If this is what you want to do, you must serve your dispute on the other parties. You can serve by any means allowed in rule 6 of the *Family Law Rules*, including mail, courier and fax. Once the dispute has been served, you must file it with the clerk of the court. The filing must be accompanied by proof of service (Form 6B). If you serve and file your dispute, the court may hold a garnishment hearing to decide the rights of the parties.